UUM
Universiti Utara Malaysia

STATUT
UNIVERSITI UTARA MALAYSIA
(NAIB CANSELOR DAN TIMBALAN NAIB CANSELOR) 2018

AKTA UNIVERSITI DAN KOLEJ UNIVERSITI 1971

PERLEMBAGAAN UNIVERSITI UTARA MALAYSIA

STATUT UNIVERSITI UTARA MALAYSIA (NAIB CANSELOR DAN TIMBALAN NAIB CANSELOR) 2018

PADA menjalankan kuasa yang diberikan oleh subseksyen 30(1) Perlembagaan Universiti Utara Malaysia [*P.U.(A) 152/98*], Canselor membuat statut berikut:

Nama dan permulaan kuat kuasa

1. Statut ini bolehlah dinamakan **Statut Universiti Utara Malaysia (Naib Canselor dan Timbalan Naib Canselor) 2018**.

2. Statut ini hendaklah mula berkuat kuasa pada **1 Februari 2009.**

Kuasa dan kewajipan Naib Canselor

3. (1) Tertakluk kepada Perlembagaan, Statut, Kaedah dan Peraturan, Naib Canselor yang dilantik oleh Menteri di bawah seksyen 4A Akta Universiti dan Kolej Universiti 1971[*Akta 30*], hendaklah mempunyai kuasa dan kewajipan berikut —

(a) menjadi ketua pegawai eksekutif Universiti;

(b) menjadi pihak berkuasa tatatertib pelajar Universiti;

(c) menjadi Pengerusi Senat, Jawatankuasa Pengurusan, Jawatankuasa Kebajikan Pelajar, Jawatankuasa Aduan Pelajar dan Jawatankuasa Pemilih bagi kursi, profesor, profesor kanan, Pendaftar, Bursar, Ketua Pustakawan dan Penasihat Undang-Undang;

(d) menjadi ahli Lembaga;

(e) menjadi penggerak utama dalam perencanaan pelan strategik dan mengambil langkah yang perlu untuk merealisasikan pelan strategik selaras dengan visi dan misi Universiti;

(f) mewakili Universiti dalam semua hubungan dengan institusi pengajian tinggi, badan-badan ikhtisas, badan-badan penyelidikan dan badan-badan lain di peringkat nasional dan antarabangsa untuk meningkatkan kecemerlangan kesarjanaan;

(g) mengeluarkan arahan pentadbiran dari semasa ke semasa atas segala urusan mengenai pengajaran, pembelajaran, penyelidikan, perundingan, perkhidmatan, pembangunan, kewangan, pengurusan aset, pentadbiran, kebajikan dan tatatertib di Universiti;

(h) menyempurnakan bagi pihak Universiti apa-apa dokumen atau surat cara yang, jika disempurnakan oleh seseorang yang bukannya suatu pertubuhan perbadanan tidak dikehendaki dimeteraikan;

(i) melantik Penolong Naib Canselor, Dekan atau Timbalan Dekan bagi setiap Kolej, Pusat Pengajian atau Fakulti selepas berunding dengan guru setiap Kolej, Pusat Pengajian atau Fakulti dan membatalkan pelantikan tersebut, dan memaklumkan kepada Lembaga mengenai pelantikan dan pembatalan itu;

(j) melantik ketua sesuatu Pusat, Akademi dan Institut selepas berunding dengan guru dan membatalkan pelantikan tersebut, dan memaklumkan kepada Lembaga mengenai pelantikan dan pembatalan itu;

(k) mempengerusikan Konvokesyen jika Canselor atau Pro-Canselor tidak hadir;

(l) membuat pertimbangan terhadap anggaran pendapatan dan perbelanjaan Universiti, yang disediakan oleh mana-mana pegawai Universiti bagi setiap tahun kewangan, sebelum dikemukakan kepada Lembaga;

(m) melantik tidak lebih daripada lima orang untuk menjadi ahli Senat Universiti selama tiga tahun;

(n) menyimpan dalam jagaannya cap meterai Universiti;

(o) menyaksikan penurunan cap meterai pada surat cara dan menandatangani surat cara itu;

(p) memantau pengurusan Kampus Cawangan;

(q) menentukan bilangan perwakilan bagi Kawasan Kolej, Pusat Pengajian atau Fakulti dan Kawasan Umum yang akan dipertandingkan dalam pemilihan Majlis Perwakilan Pelajar (MPP);

(r) membenarkan pertambahan jawatan dalam MPP selain daripada jawatan Yang di-Pertua, Naib Yang di-Pertua, Setiausaha dan Bendahari;

(s) memberi kelulusan secara bertulis kepada MPP untuk membentuk jawatankuasa *ad hoc* dari kalangan ahli MPP bagi maksud atau tujuan tertentu;

(t) memberi kebenaran secara bertulis kepada seseorang pelajar yang keputusan prosiding tatatertib terhadapnya masih ditunggu, atau yang telah didapati bersalah atas suatu kesalahan tatatertib untuk bertanding atau terus menjadi ahli MPP atau memegang jawatan bagi mana-mana badan atau jawatankuasa pelajar;

(u) memberi arahan kepada MPP dalam urusan penyusunan dan penyeliaan kemudahan kebajikan pelajar di Universiti termasuk kemudahan rekreasi, aktiviti kerohanian dan keagamaan, dan pembekalan makanan dan minuman;

(v) mempertimbangkan dan mengambil tindakan yang sewajarnya terhadap cadangan yang dikemukakan oleh MPP berkaitan hal ehwal kebajikan pelajar;

(w) menjadi Komandan Kehormat Pasukan Latihan Pegawai Simpanan (PALAPES), Kor Sukarelawan Polis Siswa (KOR SUKSIS), Angkatan Pertahanan Awam Malaysia (APM) atau mana-mana pasukan beruniform Universiti;

(x) memberi pengecualian kepada mana-mana pelajar atau pertubuhan atau badan pelajar daripada pemakaian subseksyen 15A(1) Akta, dan menetapkan apa-apa terma dan syarat yang difikirkannya patut;

(y) menggantung pelajar yang dituduh atas kesalahan boleh daftar daripada menjadi seorang pelajar;

(z) mempertimbang dan menentukan apa-apa terma dan syarat berhubung penubuhan badan pelajar yang keanggotaannya tidak kurang daripada sepuluh orang pelajar untuk memajukan sesuatu tujuan atau kepentingan tertentu dalam Universiti;

(aa) menggantung atau membubarkan pertubuhan, badan atau kumpulan pelajar Universiti, yang difikirkan, menjalankan urusan yang boleh merosakkan atau mendatangkan mudarat kepada kepentingan atau kesentosaan Universiti, pelajar atau pekerja Universiti; atau kepada ketenteraman atau keselamatan awam; atau yang melanggar mana-mana undang-undang bertulis; pertubuhan atau badan itu hendaklah diberi suatu peluang untuk membuat representasi bertulis sebelum penggantungan atau pembubaran pertubuhan, badan atau kumpulan pelajar Universiti itu;

(bb) memastikan semua pihak berkuasa dan pegawai Universiti menjalankan kuasa dan tugas sebagaimana yang ditetapkan oleh Perlembagaan, Statut, Kaedah atau Peraturan Universiti;

(cc) melakukan segala perbuatan dan perkara lain yang suaimanfaat atau perlu bagi atau bersampingan dengan pelaksanaan tugasnya untuk memperbaiki lagi pentadbiran dan pengurusan di Universiti; dan

(dd) menjalankan apa-apa tugas lain sebagaimana yang diarahkan oleh Menteri, Lembaga atau Senat dari semasa ke semasa.

Kuasa dan kewajipan Timbalan Naib Canselor

4. (1) Tertakluk kepada Perlembagaan, Statut, Kaedah dan Peraturan, Timbalan Naib Canselor yang dilantik oleh Menteri di bawah seksyen 4A Akta Universiti dan Kolej Universiti 1971[*Akta 30*], hendaklah mempunyai kuasa dan kewajipan termasuklah berkaitan hal-ehwal akademik dan antarabangsa, penyelidikan dan inovasi, pembangunan, pengurusan pelajar dan alumni Universiti, jaringan industri dan masyarakat dan perkara lain seperti berikut—

(a) menjadi ahli Senat dan Jawatankuasa Pengurusan Universiti;

(b) menjadi ahli semua Pihak Berkuasa, kecuali diperuntukkan sebaliknya;

(c) menjadi ahli *ex-officio* Lembaga;

(d) menjadi Pengerusi Jawatankuasa Pemilih bagi tujuan pelantikan dan kenaikan pangkat ke jawatan guru selain daripada profesor kanan dan profesor, Pendaftar, Bursar, Ketua Pustakawan dan Penasihat Undang-Undang;

(e) membantu Naib Canselor dalam perencanaan pelan strategik dan mengambil langkah yang perlu untuk merealisasikan pelan strategik selaras dengan visi dan misi Universiti;

(f) mewakili Naib Canselor dalam semua hubungan dengan institusi pendidikan tinggi dan badan lain di peringkat nasional dan antarabangsa;

(g) menyempurnakan bagi pihak Universiti, apa-apa dokumen atau surat cara yang, jika disempurnakan oleh seseorang yang bukannya suatu pertubuhan perbadanan tidak dikehendaki dimeteraikan;

(h) bertanggungjawab kepada Naib Canselor dalam dalam hal-ehwal akademik dan hubungan antarabangsa serta pengurusannya, dan mengambil langkah tertentu bagi meluaskan jaringan hubungan antarabangsa Universiti;

(i) bertanggungjawab kepada Naib Canselor dalam hal ehwal pelajar termasuk pembangunan sahsiah, kebajikan, tatatertib dan segala perkara yang berkaitan dengannya serta hal ehwal alumni Universiti;

(j) bertanggungjawab kepada Naib Canselor dalam hal-ehwal penyelidikan dan inovasi serta pengurusannya, mengawal selia (*custodian)* harta intelek dan mengambil langkah tertentu bagi memelihara kepentingan Universiti; dan

(k) menjalankan apa-apa kuasa dan kewajipan lain sebagaimana yang diarahkan oleh Naib Canselor, dari semasa ke semasa.

Mewakilkan kuasa dan kewajipan

5. (1) Tertakluk kepada Perlembagaan, Naib Canselor dan Timbalan Naib Canselor boleh mewakilkan mana-mana kuasa dan kewajipannya kepada mana-mana pegawai atau pekerja Universiti melalui suatu surat cara bertulis.

(2) Semasa ketiadaan Naib Canselor atas apa-apa sebab, Menteri boleh melantik mana-mana Timbalan Naib Canselor untuk menjalankan mana-mana atau

kesemua kuasa dan kewajipan Naib Canselor di bawah subseksyen 12(7) Perlembagaan.

(3) Semasa ketiadaan Timbalan Naib Canselor atas apa-apa sebab, Menteri boleh melantik mana-mana pegawai Universiti untuk menjalankan mana-mana atau kesemua kuasa dan kewajipan Timbalan Naib Canselor**.**

Kesahan perbuatan atau peninggalan Naib Canselor dan Timbalan Naib Canselor yang menjalankan kewajipan berkenaan sebelum kuat kuasa Statut

6. Tiada apa-apa perbuatan atau peninggalan oleh Naib Canselor dan Timbalan Naib Canselor yang menjalankan kewajipan yang berkenaan sebelum kuat kuasanya Statut ini boleh menjadi tidak sah atas sebab Statut ini belum berkuat kuasa.

Dibuat 2018
[KPT(PUU)S.....; PN (PU[2])..........]

KEBAWAH DULI YANG MAHA MULIA AL-AMINUL KARIM
SULTAN SALLEHUDDIN IBNI ALMARHUM SULTAN BADLISHAH
Canselor

Universiti Utara Malaysia

Nota: LPU ke-101 7 April 2016

UNIVERSITIES AND UNIVERSITY COLLEGES ACT 1971

CONSTITUTION OF THE UNIVERSITI UTARA MALAYSIA

UNIVERSITI UTARA MALAYSIA (VICE-CHANCELLOR AND DEPUTY VICE-CHANCELLOR) STATUTE 2018

IN exercise of the powers conferred by subsection 30(1) of the Constitution of the Universiti Utara Malaysia [P.U. (A) 152/98], the Chancellor makes the following Statute:

Citation and commencement

1. This Statute may be cited as the **Universiti Utara Malaysia (Vice-Chancellor and Deputy Vice-Chancellor) Statute 2018**.

2. This Statute shall be deemed to come into operation on **1 February 2009**.

Powers and duties of the Vice-Chancellor

3. (1) Subject to the Constitution, Statute, Rules and Regulations, the Vice-Chancellor and Deputy Vice-Chancellor appointed by the Minister under section 4A of the Universities And Universities College Act 1971 [*Act 30*], shall have the powers and duties as follows:

(a) to be the chief executive officer of the University;

(b) to be the student disciplinary authority of the University;

(c) to be the Chairman of the Senate, the Management Committee, Student Welfare Committee, Students' Complaints Committee and Selection Committee for appointment to a Chair, appointment or promotion of senior professor, professor, Registrar, Bursar, Chief Librarian and Legal Adviser;

(d) to be member of the Board;

(e) to lead in the accomplishment of the strategic planning and to take necessary steps or directions for the realization of the strategic plan in consistent with the vision and mission of the University;

(f) to represent the University in fostering linkages with other higher educational institutions, professional and research bodies and all national and international bodies for the advancement of excellence in scholarly works of the University;

(g) to issue administrative instructions from time to time in connection with all arrangements relating to teaching, learning, research, consultation, services, development, financial, asset management, administration, welfare and discipline in the University;

(h) to execute for and on behalf of the University, any document or instrument which, if executed by a person not being a body corporate, will not required to be under seal;

(i) to appoint an Assistant Vice-Chancellor, Dean or Deputy Dean in respect of each College, School or Faculty, after consultation with the teacher of that College, School, or Faculty, or to revoke such appointment and notify the Board of such appointment and revocation;

(j) to appoint head of Centres, Academies and Institutes after consultation with the teacher, or to revoke such appointment and notify the Board of such appointment and revocation;

(k) to preside over a Convocation in the absence of the Chancellor or the Pro-Chancellors;

(l) to consider the estimates of income and expenditure for each financial year as prepared by any officer of the University, before submitting it to the Board;

(m) to appoint not more than five persons from the University to be member of Senate for a term of three years;

(n) to keep in his custody the common seal of the University;

(o) to attest the affixing of the common seal of the University on any instruments and execute such instruments;

(p) to monitor the administration and management of Branch Campus;

(q) to determine the number of representatives for the College, School or Faculty constituency and the General constituency to be contested in the election of the Students' Representative Council (SRC);

(r) to allow additional office-bearers in the SRC other than the President, the Vice President, the Secretary and the Treasurer;

(s) to give approval to SRC to form *ad-hoc* committee among its member for specific objects or purposes;

(t) to allow a student against whom disciplinary proceedings are pending, or who has been found guilty of a disciplinary offence to contest or remain as a member of SRC or remain an office-bearer of any body or committee of student;

(u) to give direction to SRC in matters relating to arrangement and supervision of student welfare facilities in the University including recreational facilities, spiritual and religious activities and the supply of meals and refreshments;

(v) to consider suggestion and take necessary actions in matters relating to student welfare as represented by the SRC;

(w) to be the Honorary Commandant of Reserved Officer Training Unit (ROTU), Police Undergraduate Voluntary Corps (KOR SUKSIS), The Malaysian Civil Defence Force (APM) or any other uniform group;

(x) to grant exemption to any students or organizations or body or group of students of the University upon using this subsection 15A(1) of the Act, and to determine any term and conditions as it deemed fit;

(y) to suspend a student charged with a registrable offence from being the student of the University;

(z) to suspend or dissolve any organization, body or group of student of the University conduct itself in a manner which the Vice-Chancellor considers detrimental or prejudicial to the interests or well-being of the University, students or employee of the University or to public order or safety or security or violate any written law; such organization, body or group shall be given an opportunity to make a written representation before that organization, body or group of student is suspended or dissolved;

(aa) to determine any terms and conditions of student bodies consisting of not less than ten students and to approve its establishment;

(bb) to ensure all the Authorities and officers of the University exercise their powers and duties in accordance with the Constitution, Statutes, Rules and Regulations of the University;

(cc) to perform any other duties as instructed by the Minister, Board or Senate from time to time; and

(dd) to do all such acts and things necessary and expedient for or incidental in the execution of his duties in order to further improve the administration and management, in the University.

Powers and duties of the Deputy Vice-Chancellor

4. (1) Subject to the Constitution, Statute, Rules and Regulations, the Vice-Chancellor and Deputy Vice-Chancellor appointed by the Minister under section 4A of the Universities And Universities College Act 1971 [*Act 30*] shall have the powers and duties including academic and international affairs, research and innovations, development management of students and alumni of the University, industrial and community linkages, and other matters as follows:

(a) to be a member of Senate and Management Committee;

(b) to be a member of all Authorities except provided otherwise;

(c) to be *ex-officio* member of the Board;

(d) to chair the Selection Committee for appointment and promotion to the post of teacher except senior professor and professor, and to the post of Registrar, Bursar, Chief Librarian and Legal Adviser;

(e) to assist the Vice-Chancellor in the accomplishment of the strategic planning and to take necessary steps or direction in the realization of the strategic planning in accordance with the vision and mission of the University;

(f) to assist the Vice-Chancellor in representing the University in fostering linkages with any higher educational institutions and all national and international bodies;

(g) to execute for and on behalf of the University, any document or instrument which, if executed by a person not being a body corporate, will not be required to be under seal;

(h) responsible to the Vice-Chancellor in matters relating to academic and international cooperation affairs and its management, and to take steps to safeguard the interest of the University;

(i) responsible to the Vice-Chancellor in matters relating to student affairs including the development of personality, welfare, discipline and all matters relating thereto and affairs of the alumni of the University;

(j) responsible to the Vice-Chancellor in matters relating to research and innovation affairs and its management, be custodian to the intellectual property and to take certain steps to safeguard the interest of the University; and

(k) to perform other duties as instructed by the Vice-Chancellor from time to time.

Delegation of powers and duties

5. (1) Subject to the Constitution, the Vice-Chancellor and Deputy Vice-Chancellor may delegate any of his powers and duties to any other officer or employee of the University through a written instrument.

(2) In the absence of the Vice-Chancellor for any reason, the Minister may appoint Deputy Vice-Chancellor to exercise any or all of the powers or perform any or all of the duties of the Vice-Chancellor in accordance with subsection 12(7) of the Constitution.

(3) In the absence of the Deputy Vice-Chancellor for any reason, the Minister may appoint any officer of the University to exercise any or all of the powers or perform any or all of the duties of the Deputy Vice-Chancellor.

Validity of acts or omissions performed by the Vice-Chancellor and the Deputy Vice-Chancellor before the Statute comes into effect

6. No acts or omissions by the Vice-Chancellor and the Deputy Vice-Chancellor antecedent the coming into force of this Statute shall have an effect to invalidate the same.

Made 2018

[KPT(PUU)...;PN(PU^2).....]

KEBAWAH DULI YANG MAHA MULIA AL-AMINUL KARIM
SULTAN SALLEHUDDIN IBNI ALMARHUM SULTAN BADLISHAH
Chancellor

Universiti Utara Malaysia